APPENDIX A
INFORMATION REQUIREMENTS FOR APPLICATIONS

1.1 INTRODUCTION

The information requirements for applications are an essential part of the development assessment process, whilst also satisfying the statutory and legal requirements of the planning system. Clear, concise and complete information and documentation (i.e. plans, written documents and other like information) allow the Council and any other relevant Government Authority to determine the likely impacts that a proposed development may have. The purpose of this Appendix is to ensure that the information requirements and application processes are applied consistently for all applications and clearly stipulate the requirements of applicants, as well as, highlighting the matters that the Council will consider at the time of determining an application.

Notation

It is advised that the information requirements listed in this Appendix, whilst comprehensive, are not exhaustive as additional information may be required by the Council depending on the application and the development type. It is recommended that applicants satisfy the specific Part/s of the DCP that relate to their particular zone and development type and that in some instances, this Appendix may duplicate provisions as contained within the DCP.

1.2 APPLICATION PROCESS

Form of Application

Where development requires consent from Council, an application shall be submitted for assessment and determination. All submitted applications shall include an application form (available from Council) and a sufficient level of associated information (inclusive of plans and written documentation) to enable the assessment of the proposal against the requirements of the LEP, this DCP and any other associated documents referred to in this document.

Pre-application Discussions

Applicants are encouraged to undertake pre-application discussions with relevant AlburyCity staff to determine the approval requirements, and the relevant controls to be satisfied. Pre-lodgement discussions are seen as a good way of highlighting any potential problems that may arise during the development application process and may help ensure that the assessment of a development application is not unduly delayed. It is recommended that at the time of meeting, applicants provide preliminary drawings of their proposal, inclusive of site plan, elevations, surrounding land uses and any other relevant information in order to help AlburyCity staff provide a greater level of feedback and advice before lodgement. The Council further provides a wide

variety of information via its website (www.alburycity.nsw.gov.au) in the nature of forms and factsheets, guidelines to completing applications, and the general planning processes that an application will be assessed against during the planning process.

Similarly, should an applicant be unsure of what level of information is required for their particular development, it is encouraged that contact also be made with Council's Planning Department (phone (02) 6023 8285), as to the necessary requirements Council will consider at the time of determining an application. This may also be resolved via a pre-application meeting.

Processing Applications

Following receipt of an application, Council may request additional copies of that application, as well as, requiring the submission of any additional information not originally provided. In the event further information is required, Council shall specify in detail the information required, as well as, the time period available to the applicant to provide such additional information.

Prior to a decision by Council regarding the application, it may be:

- Rejected by Council (in certain circumstances, such as, the submission of an application for prohibited development under the LEP or an application that is incomplete or unclear).
- Withdrawn or amended by the applicant, prior to its determination by Council.
- Subject to notification for public comment, and extracts of the application made available to the public.

Council will, at the time of lodgement, require the payment of fees for any such application to contribute to the cost of that application being processed by Council. This fee may vary according to the type of application, as well as, the number of government departments that need to be consulted. A list of these fees is available from Council.

The specific requirements and process for development applications are outlined in the *Environmental Planning and Assessment Act, 1979* and the *Environmental Planning and Assessment Regulation, 2000*.

In considering applications Council shall take into account the requirements of:

- The provisions of the LEP.
- The provisions of this DCP.
- Relevant State Environmental Planning Policies (SEPPs).
- Relevant Regional Environmental Plans (REPs) (deemed SEPPs).
- Other strategies, policies and advisory documents of Council or the NSW Government and its associated government departments.

- Advice received from specialist experts within Council and from other agencies and organisations external of Council.
- The likely impacts of that development, including environmental impacts on natural and built environments, as well as, the social and economic impacts that the development may have on the locality.
- The suitability of the site for development and vice versa.
- Any submissions made in accordance with the *Environmental Planning and Assessment Act 1979* or the *Environmental Planning and Assessment Regulation 2000*.
- The public interest.
- Any other matter it considers relevant.

Other Obligations of the Applicant

Applicants should be aware that separate requirements may exist under other Acts or Regulations and that the applicant shall be responsible for ensuring these obligations are satisfied. Council may advise of such matters and may take into account the status of the proposal in relation to these additional requirements. Such requirements include, but are not limited to, the provisions of:

- Part 5 of the *Environmental Planning and Assessment Act, 1979*, relating to environmental assessment.
- *Threatened Species Conservation Act, 1995*.
- *Wilderness Act, 1993*.
- *Rural Fires Act, 1997*.
- *Local Government Act, 1993*.
- *Water Management Act, 2000*.
- *Protection of the Environmental Operations Act, 1997.*
- *Roads Act, 1993*.
- *Heritage Act, 1977.*

Issuing Consent

Upon determination, Council may grant consent with, or without, conditions. Such conditions may outline the responsibilities and obligations of the applicant to ensure the consent remains valid, or may outline the matters to be undertaken prior to a construction certificate, occupancy certificate, fire safety certificate or subdivision certificate (allowing the issue of new land titles) being issued.

Council shall specify the particular land uses for which consent is granted in relation to the proposal, as well as, the timeframe for which the consent remains valid. In the event that the proposal has not been completed, or that particular conditions have not been satisfied, within this timeframe, the consent becomes invalid and lapses, if work has not *physically commenced* as defined by Section 95 of the *Environmental Planning and Assessment Act, 1979*. Applicants may apply for only one extension of

time to the development consent, prior to the date that it would otherwise have lapsed, outlining the progress of the works, the extent to which the consent conditions have been satisfied, and the reasons why an extension is required.

Upon determination Council may, however, refuse to grant development consent to an application, on the basis that it; adversely impacts upon the surrounding environment, or that the proposal, although permitted with consent in the LEP, does not satisfy the objectives and requirements of the LEP or this DCP.

1.3 GENERAL INFORMATION REQUIREMENTS FOR ALL DEVELOPMENT

The following provides a general list of information required for certain applications, and whilst this list is comprehensive, it is not exhaustive, as additional information may be required depending on the application and the development type.

General Requirements

i. A fully completed application form, inclusive of development details and owner/s signatures.
ii. A Statement of Environmental Effects, detailing the specific environmental impacts (if any) of the development, as well as, outlining how these environmental impacts have been identified and minimised.
iii. Three (3) sets of plans and documentation (more copies may be necessary if consultation is required with other authorities), drawn to a metric scale and including a North point, and supplemented by written clarification if necessary, indicating:

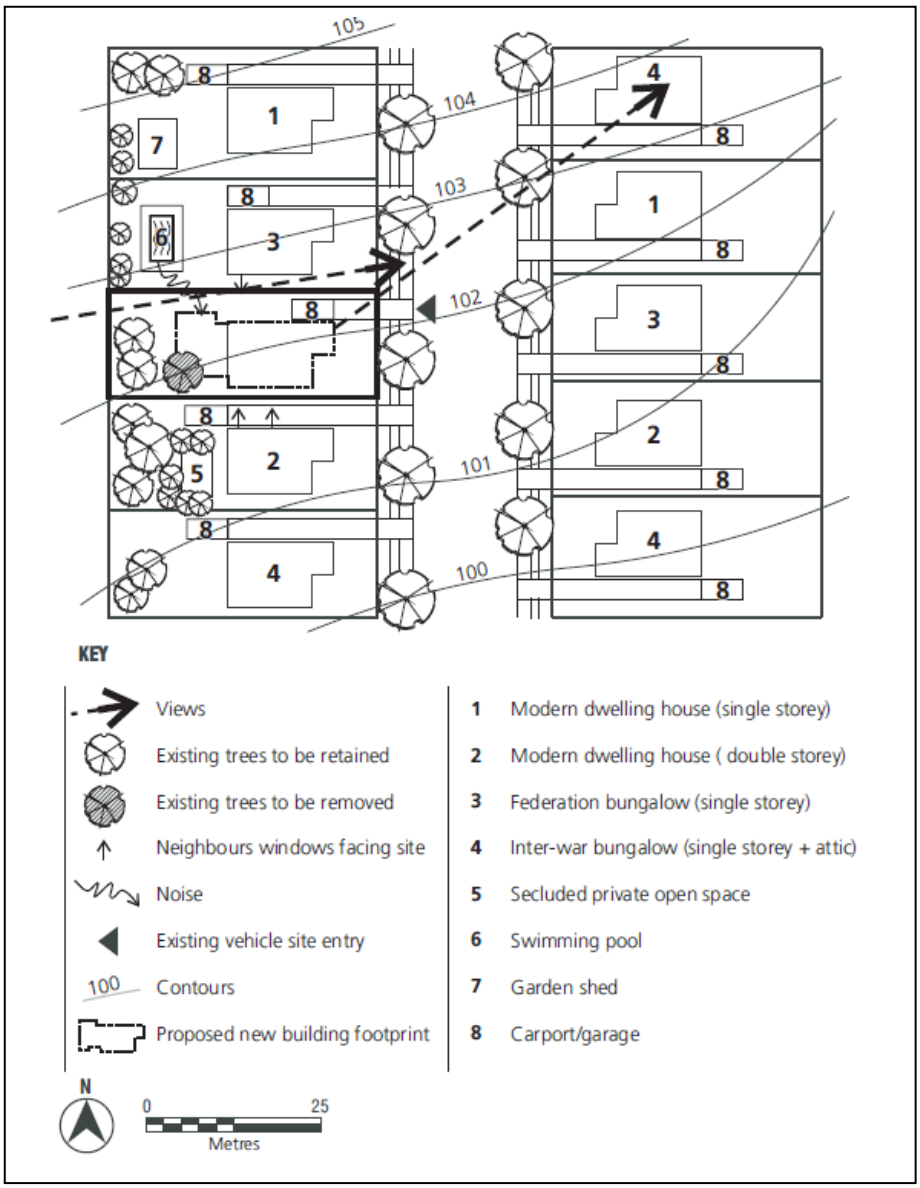
Existing Situation

- Locality plan and/or site context plan (to a scale of 1:500) showing roads (sealed and unsealed), surrounding lot boundaries, LEP zone boundaries, and the location of any buildings and physical features, including fences, walls, significant vegetation and trees (and specifying which trees are greater than 4.5m in height and 3m in span) on adjoining properties, topography (height contours if necessary) and the configuration of adjacent buildings or structures, including dimensions and the location of windows, doors and other openings of adjacent buildings. Refer to Figure 1.1 below for an example of a Site Analysis Plan.
- The boundaries of the subject lot/s with dimensions and all existing significant physical features on the site, such as vegetation and trees (and specifying which trees are greater than 4.5m in height and 3m in span), watercourses, fences, buildings, utility services (including boundaries of any associated easements), etc.
- Details of past land uses, and potential for land contamination.

The Proposal

- All land uses proposed for the development, as defined and specified by the LEP and its Dictionary.
- Fully dimensioned drawings outlining the proposed building/s, structure/s, excavation or earthworks, and utility services to be installed on the lot, including plans, elevations and sections (to a scale of 1:100).
- Details of natural ground levels and proposed finished ground levels of the building site including details of 'cut and fill', slope batters or retaining walls/structures.
- The proposed arrangements for drainage on the site and, if the site is flood prone, how the proposal responds to requirements for flood protection.
- Diagrams showing the area of the site/s, the percentage of site coverage of buildings, and dimensioned setbacks from boundaries.
- Diagrams showing solar access to habitable rooms have been considered and that energy efficient designs have been incorporated. Council recommends owner-builders, building designers and land developers refer to *Your Home: Design for Lifestyle and the Future*, Australian Government for technical design guidance relating to dwelling design for energy and water efficiency.
- Details of external materials, finishes and building articulation.
- The location of any vegetation or trees to be either retained or removed, and any proposed arrangements to provide vegetation removal off-sets.
- Details of any proposed landscaping works.
- The location and means of proposed vehicular access to the land, and the location and dimensions of any car parking spaces and associated accessways.
- Any existing and/or proposed land rehabilitation or decontamination works (if necessary).
- BASIX Certificate and listed commitments (if required)
- Shadow diagrams for all new buildings or significant alterations to existing buildings (two-storeys or taller) showing shadows at 9:00am, 12 noon and 3:00pm on 21 June, 21 September, 21 December and 21 March. Shadow diagrams must be certified on the appropriate form by a surveyor, architect or other competent person.

Figure 1.1: Site Analysis Plan



Interaction with Surrounding Areas

- Diagrams indicating how the proposal addresses impacts on surrounding land uses, including overshadowing, overlooking from the development onto adjacent dwellings, in addition to the view of the development from adjacent or nearby locations and the impact on any contiguous streetscapes and/or adjacent public spaces.
- Street trees, fixtures, fittings, services, infrastructure, road and footpath locations and surfaces in the adjacent public road reserve or other public property, and how these relate to the proposal, including details for providing utility service connection.
- Proposed property boundary interaction with adjacent road reserve boundaries, including fences, walls, letterboxes, and gates, as well as,

proposed building configurations and arrangements for any zero setbacks adjacent to road reserves.

- Areas which may be subject to noise and/or odour (e.g. the Albury Airport, Albury landfill or extractive industry sites).

Notation
Development and Subdivision works shall be in accordance with the *AlburyCity Engineering Development Standards.*

1.4 FURTHER INFORMATION REQUIREMENTS FOR DEVELOPMENT IN THE RURAL AND ENVIRONMENTAL ZONES

It should not be assumed that each lot within the Rural and Environmental Zones has an entitlement to build a dwelling or an application to subdivide or construct a dwelling will be approved. Please contact relevant AlburyCity staff to clarify planning, subdivision and building requirements for your property.

An owner or prospective purchaser of land, in the Rural or Environmental Zones, considering subdivision and/or development of a dwelling, needs to clearly establish the following from Council prior to making an application:

i. Can Council legally consider the application for the subdivision of land? Therefore, is the subdivision permissible with the consent of Council and in accordance with Council's LEP?
ii. Can Council legally consider an application for a dwelling? Therefore, is a dwelling permissible with the consent of Council and in accordance with Council's LEP?

Existing Situation

- Land capability assessment, identifying landform and soil conditions, rocky outcrops, depth to groundwater and other conditions which may render the site, or parts of the site less capable to accommodate the proposed development, including, but not limited to where on-site effluent disposal is best located, and the rate and location at which different stock can be accommodated on the site (if relevant).
- Existing areas of degraded land, such as eroded gullies or high salinity affected soils, or mountain plateaus and steeper slope areas where soils tend to be granite and shallow overlaying clays and rock.
- The location of damplands, wetlands and watercourses.
- Surrounding catchment areas for water collection and the ability to harvest water, and the pattern of run-off from the site to the wider catchment.
- Presence of remnant vegetation, important wildlife habitat corridors or areas which may have environmental significance (e.g. threatened species).
- Areas of vegetation which may constitute a fire risk.

- Exposure to high winds.
- Existing dams.
- Any adjacent agricultural activity.
- Views to and from the site.
- Areas remote from a sealed public road, particularly where long, dead-end public or private roads are required, particularly in terms of fire risk.
- Distance and exposure to neighbouring dwellings.
- Quality and quantity of water for domestic and other uses.
- The location of any potentially contaminated lands on site due to previous agricultural activities and pursuits (e.g. fuel storage).

The Proposal

- Information indicating how the proposal responds to the site characteristics identified from examining the existing situation.
- The details of how utility services are to be provided, in particular the arrangements for domestic and non-domestic water supplies and on-site effluent disposal.
- The details of any proposal to keep stock or undertake agricultural pursuits.
- Drainage management undertakings.
- Proposals to rehabilitate areas of land degradation or re-establish habitat corridors.
- Bushfire protection measures in accordance with *Planning for Bushfire Protection, NSW Rural Fire Service 2006*.
- How the development proposes to minimise the potential impact from adjacent agricultural activity on the occupants of any proposed buildings.

1.5 FURTHER INFORMATION REQUIREMENTS FOR MIXED USE, MULTI DWELLING HOUSING AND RESIDENTIAL FLAT BUILDING DEVELOPMENTS

Due to the complexity and size of Mixed Use, Multi Dwelling Housing and Residential Flat Building Developments these will require a higher level of information to be submitted for an application. Some of the information required, but not limited to include:

i. A Local Context Analysis Plan addressing the items outlined in Appendix 2 of the *Residential Flat Code. NSW Government, 2007* (available at http://www.duap.nsw.gov.au/programservices/dcode.asp).

ii. A thorough Site Analysis Plan (including a levels and features survey) and analysis report, which explains how the development responds to the site, and shall include, but not be limited to:
    - The Design Quality Principles listed in Appendix 1 of the *Residential Flat Code. NSW Government, 2007*.
    - The items indicated in Part 2 and Appendix 3 of the *Residential Flat Code. NSW Government, 2007* as recommended for a site analysis.

- The available northern orientation and adjacent sources of shade.
- The adjacent sources of noise and overlooking issues both to and from the site.
- The setback, bulk and configuration (including the location of windows, doors and openings) of adjoining structures to the common boundary.

iii. All information items outlined in Appendix 3 of the *Residential Flat Code. NSW Government, 2007*.

iv. A Traffic Impact Assessment Report (inclusive of car parking numbers and areas, drop-off points and waste collection, disposal and pickup points).

v. All information contained within *State Environmental Planning Policy No. 65 – Design Quality of Residential Flat Development*.

vi. How the proposal satisfies both the Albury and Lavington CDB Masterplans.

vii. How the proposal satisfies the LEP Height of Buildings and Floor Space Ratio Maps.

viii. Any of matter that Council deems necessary.

At the time of lodgement for an application for a Mixed Use, Multi Dwelling Housing or Residential Flat Building development, Council will require the application be accompanied by a design verification statement from a qualified designer as required under *State Environmental Planning Policy No. 65 – Design Quality of Residential Flat Development*.

Notation

Refer also to Parts 10 and 11 of this DCP, which relate to Development in the Residential Zones and Development in the Commercial Zones, in particular regarding Mixed use, Multi dwelling housing and Residential Flat Buildings.

1.6 FURTHER INFORMATION REQUIREMENTS FOR HERITAGE ITEMS AND HERITAGE CONSERVATION AREAS

1.6.1 Development Applications

In support of an application for development in relation to a heritage item, or a building or work located within a heritage conservation area as identified within Schedule 5 of the LEP, it will be necessary for the applicant to supply written evidence prepared by an appropriately qualified specialist:

- Demonstrating that due consideration has been given to the significance of the heritage item or the building or work concerned and/or relevant heritage conservation area objectives and controls.
- Detailing the significance of the heritage item or building or work, both individually, and in the context of the environmental heritage of Albury.

- Setting out any steps to be taken to mitigate any likely adverse impact on the heritage significance of the item and its setting or on the building or work in the relevant conservation area.

Notation

The Council may request additional information in support of an application before it makes a decision. This may include an assessment of the history of the building, a report on the structural condition both internal and external; or details of any unusual features). In certain instances a heritage impact statement and/or a heritage conservation management plan, prepared by an appropriately qualified specialist, may be required to enable the Council to fully consider the significance of the building and the impact of the proposed development on the building and its setting.

Apart from considering this DCP, applicants are also advised to consult with AlburyCity staff prior to preparing development applications in relation to heritage applications to ensure compliance with Clause 5.10 and Schedule 5 of the LEP, for guidance on the type of supporting information and documents, number of copies of plans, etc which are to be submitted. Further information can also be found on the NSW Heritage Office's website (available at www.heritage.nsw.gov.au/)

1.6.2 Demolition

An application to demolish a heritage item or a building or work within a conservation area must be accompanied by detailed plans of the building which is proposed to take its place. Council will have regard to this proposal in considering the application for demolition.

Notation

The proposed new building(s) is to have regard to the existing streetscape and conservation values of the area.

An application for demolition shall also address in the statement of environmental effects:

- The historic, aesthetic and/or social significance of the building and its relationship to the overall character and significance of the locality.
- The impact of the removal of the building or work on the overall significance of the area.
- The reason for the proposed removal especially why it is considered, and to what extend, the building/site can no longer be used in its existing form or with appropriate adaptation.

Notation

For subdivision requirements relating to Heritage Items and Heritage Conservation Areas, refer to Section 1.13 of this Appendix.

An application for consent to the demolition of a heritage item or a building or work within a heritage conservation area will be advertised by notice in the local paper for public comment.

Council cannot grant consent to an application to demolish a heritage item listed in Schedule 5 of the LEP as being of State significance until it has notified the NSW Heritage Council and taken into account any response received from the NSW Heritage Council within 28 days after the notice has been sent.

Section 1.6.2 of this Appendix does not apply in relation to the partial demolition of a heritage item or a building or work within a conservation area, where if in the opinion of the Council the partial demolition is:

- of a minor nature;
- will not adversely affect the heritage significance of the Item or area; and
- is likely to facilitate the sympathetic redevelopment of the remainder of the heritage item, building or work.

1.7 GENERAL INFORMATION REQUIREMENTS FOR LANDSCAPE PLANS

The following provides a general list of information required for landscape plans, and whilst this list is comprehensive, it is not exhaustive, as additional information may be required depending on the application and development type, as well as, the specific Zone requirements as stipulated in this DCP.

i. Landscape plans shall be drawn to a standard scale of 1:100, 1:200 or 1:500 depending on the size of the site.

ii. Amongst other things the landscape plan shall include:

- North point.
- Finished surface levels, embankments and grades (indicative of the extent of cut and fill, mounding or rockery).
- Existing trees to be retained or removed.
- Proposed planting principles (indicative of species, location, approximate quantity and mature height).
- Proposed surface treatments (turf, paving, bank stabilisation, etc).
- Proposed fences, retaining walls or water features (indicative of heights and material).
- Erosion and sediment control measures.
- Where necessary, any elevation of the landscape works.

1.8 FURTHER INFORMATION REQUIREMENTS FOR INTEGRATED DEVELOPMENT APPLICATIONS

Integrated development may be defined as development (not being complying development), that, in order for it to be carried out, requires a permit and the development consent of a Government Department/s as defined under Section 91 of the *Environmental Planning & Assessment Act 1979*. Accordingly, any application that falls under the provisions of Integrated Development will need to be referred to the relevant Government Department/s for approval. Such applications will be processed in accordance with the specific requirements of the *Environmental Planning and Assessment Act, 1979* and the *Environmental Planning and Assessment Regulation, 2000* and may result in additional information requirements. It is recommended that contact be made with Council's Planning Department (phone 02 6023 8285), as to the specific requirements for Integrated Developments, which Council or any other relevant Government Department may need to consider at the time of determining an application. This may also be resolved via a pre-application meeting.

1.9 FURTHER INFORMATION REQUIREMENTS FOR DESIGNATED DEVELOPMENT APPLICATIONS

Designated Development as defined under Schedule 3 of the *Environmental Planning and Assessment Regulation, 2000* requires to preparation of an Environmental Impact Statement (EIS) addressing the requirements of the Director General. In particular, the matters that must be addressed in an EIS are provided by the Director General. These are typically sought once the applicant has confirmed the nature of the Designated Development proposed, its permissibility, and land on which it is located. Accordingly, the Director General's requirements will identify the matters including relevant planning legislation to be addressed in the EIS, whilst all applications relating to Designated Development shall be determined by a relevant Joint Regional Planning Panel (JRPP). It is recommended that contact be made with Council's Planning Department (phone 02 6023 8285), as to the specific requirements for Designated Development, which Council, the Department of Planning or any other relevant Government Department may need to consider at the time of determining an application. This may also be resolved via a pre-application meeting.

1.10 GENERAL INFORMATION REQUIREMENTS FOR SUBDIVISION

The following provides a general list of information required for subdivision applications, and whilst this list is comprehensive, it is not exhaustive, as additional information may be required depending on the application.

General Requirements

i. A copy of the land title/s, which are the subject of the application.

ii. Three (3) sets of plans and documentation (more copies may be necessary if consultation is required with other authorities), drawn to a metric scale and including a North point, and supplemented by written clarification if necessary, indicating:

Existing Situation

- Locality plan and/or site context plan (to a scale of 1:500) showing roads (sealed and unsealed) with road names included, surrounding lot boundaries, LEP zone boundaries and the location of any buildings and features, including fences, walls, significant vegetation and trees on adjoining properties, topography (relief contours at 1.0m intervals if necessary) and the configuration of adjacent buildings or structures.
- The boundaries of the subject lot/s and existing lot numbers (shown in dashed linework and fonts) with dimensions and all existing significant physical features on the site, such as vegetation and trees (including threatened flora and fauna species), watercourses, fences, buildings, utility services (including boundaries of any associated easements), etc.
- Indication of the subdivisional area(s) where the slope exceeds 10%.
- Details of past land uses, and potential for land contamination,

The Proposal

- Fully dimensioned drawings outlining the proposed new lot boundaries and lot numbers (shown in full linework), as well as, the boundaries of any proposed new road reserves or other public reserves, easements, or adjustments to existing reserves or easements to an appropriate scale.
- New lots to be numbered consecutively.
- In the case of Integrated Development the location of lot boundaries in relation to the configuration of building/s and structure/s, including plans and elevations of the buildings which satisfy the General Information Requirements for Development.
- Plans and cross-sections of road reserve profiles, including road pavement widths and depths (base and seal), roadside drainage systems and culverts, kerb profiles, parallel car parking spaces within the road reserve, intersection treatments, pedestrian refuges and roundabouts, footpaths, nature strip plantings and drainage responses, the location of (above and below ground) utility services (plan and cross-sections) within the road reserves, including fire hydrant locations, street furniture and fixtures and street lighting, to the relevant Council standard.
- Access arrangements for each lot, including preferred locations of cross-overs in relation to elements within the road reserve.
- Details of natural ground levels and proposed finished ground levels.
- The proposed arrangements for drainage on the site and, if the site is flood prone, how the proposal responds to requirements for flood protection.

- The location of any vegetation or trees to be either retained or removed, and any proposed arrangements to provide vegetation removal off-sets.
- The location and means of vehicular access to the land, and the location and dimensions of any car parking spaces and associated accessways.
- Any existing and/or proposed revegetation, land rehabilitation or decontamination works (if necessary).
- Bushfire protection measures in accordance with *Planning for Bushfire Protection, NSW Rural Fire Service 2006*.

1.11 FURTHER INFORMATION REQUIREMENTS FOR GREENFIELD SUBDIVISION

For the purposes of this DCP, a greenfield subdivision is defined as the subdivision of any land title, multiple land titles, or parts thereof, equal to or greater than 10,000m^2 (1ha), into two or more lots of any size for the purposes of urban development, which may include, or be exclusive to residential, commercial or industrial development.

The Proposal

- Utility and community services demand and supply assessment, indicating the likely demand for additional infrastructure and how this will be provided within the subdivision area and/or where augmentation to existing networks are required.
- A public open space network which protects areas of significant habitat, other ecological or significant environmental features, places and items of archaeological or cultural heritage value, damplands, wetlands and watercourses - preserved, rehabilitated, or constructed, and how these relate to a drainage management plan. The location and size of areas within the open space network available for usable public access should be identified, in addition to areas for formal and informal recreation facilities. The proposal should also explain the linear arrangements within the network designed to create permeability and connectivity, and the interface treatments between the network and other land uses.
- Location and extent of any proposed commercial areas, and how these relate to the district hierarchy of commercial centres and the demand and supply for commercial floorspace. This includes the approach to integrating the centre with surrounding developments, the density of dwellings immediately adjacent, the co-location of community facilities, and the transport planning and access arrangements for both public and private transport, including pedestrian and cycle connections.
- A Traffic Impact Assessment and Traffic Management Plan, explaining the proposed road system, its integration into the City-wide transport system, and (in the context of integrated transport and land use planning principles) the measures deployed to encourage transit and pedestrian oriented development.

- A Drainage Management Plan, including the water sensitive urban design measures used to maximise the re-use of stormwater and/or convey stormwater in a manner which reduces the rate of flow and improves the quality of water discharged into receiving or storage bodies. This may include underground stormwater storages in road reserves for irrigating landscaped areas.
- The lot size variations and locations, the location of sites intended for multi-dwelling development, attached dwellings or residential flat buildings, the lot and street layouts designed to achieve pedestrian, cycle and vehicular permeability, legibility and long term urban design flexibility (e.g. "New Urbanism" principles), in addition to integrated transport and land use planning outcomes, water and energy efficiency design initiatives, including orientation, dimensions and configuration of lots to maximise solar access.
- Plans indicating the existing relief contours, and the proposed relief contours (at 1.0m intervals) resulting from re-contouring earthworks, overlayed with the proposed lot and road layout.
- Construction management plan, including dust suppression measures.
- Details of any proposed landscaping works.

Interaction with Surrounding Areas

- Diagrams indicating how the proposal addresses impacts on surrounding land uses, in addition to the view of the subdivision from adjacent or nearby locations.
- Details for where roadworks and utility services connect to existing infrastructure networks and, in the event existing assets require works, how these will be made good.
- Areas which may be subject to noise and/or odour (e.g. the Albury Airport, Albury landfill or extractive industry sites).

Notation

Clauses 6.1-6.4 of the LEP require the preparation of a site specific Development Control Plan that addresses specified matters prior to development consent being granted for development on land in an urban release area.

1.12 FURTHER INFORMATION REQUIREMENTS FOR SUBDIVISION IN THE RURAL AND ENVIRONMENTAL ZONES

The Proposal

A report accompanying the application must address:

i. How the subdivision is compatible with the zone objectives and the minimum lot size requirements for the land.

ii. The reasons for the subdivision, including the land uses envisaged for the new lots.

iii. The impacts of the subdivision on the land (including the potential for that land to be used for viable agricultural purposes to be diminished).

iv. How the subdivision will result in a net benefit to the environment and the community, including measures to protect, rehabilitate and manage significant environmental values of the land, including water resources, minerals and basic raw materials.

v. Whether a dwelling is intended for the lot or lots.

vi. If the purpose of the subdivision is to create a lot less than that prescribed on the LEP Minimum Lot Size Map, in accordance with Clause 4.2 of the LEP, for the purposes of primary production or intensive agriculture, the report must include:

- An assessment of the sustained viability of the land for the proposed activity.
- Details of the proposed activity.
- Demonstrated commitment to undertake the activity for which the lot is created.
- Potential impacts of the proposed activities on adjoining properties and dwellings in the vicinity.
- Details and location of proposed building and structures on the site.

1.13 FURTHER INFORMATION REQUIREMENTS FOR SUBDIVISION RELATING TO HERITAGE ITEMS AND HERITAGE CONSERVATION AREAS

Where a person proposes to subdivide land (or adjoining land) on which a heritage item is located as identified within Schedule 5 of the LEP, the Council may require the submission of a conservation assessment or plan prior to consideration of the application, prepared by an appropriately qualified specialist. This plan must:

- Provide evidence that the integrity of the heritage item and its surroundings will be conserved using an appropriate curtilage;
- Ensure that the fabric of the building as a whole is protected and maintained;
- Address any additional matters raised by the Council through pre-development application discussions related to heritage significance or the potential impacts of the subdivision are considered.

Notation

Section 1.13 does not apply to a proposal to subdivide land (or adjoining land) on which a heritage item is located where if in the opinion of the Council the subdivision is:

- of a minor nature; and
- will not adversely affect the curtilages of the heritage Item.

1.14 FURTHER INFORMATION REQUIREMENTS FOR THE VARIATION OF A PLANNING PROVISION (DEPARTURES AND NON-COMPLIANCES)

Council acknowledges that it is not possible for both the LEP and DCP to account for all possible situations, sites and development scenarios. Therefore the development and zoning controls have been designed to be flexible. Consequently when circumstances warrant, Council may consent to an application which departs, to a minor extent, from the provisions of these controls. In such cases, a written submission must be lodged with the Development Application, outlining the variation, providing reasons why the variation is necessary or desirable and setting out how the objectives of the particular provisions are satisfied by the proposal. Within an application to vary a planning provision an applicant shall:

1. State the relevant requirement or standard and each Part of the DCP that is the subject of the request.
2. Identify the objective/s of the requirement or standard.
3. State the extent of each variation (this may be in mathematical or qualitative terms).
4. Give reasons to support the variation. This may include a written statement with diagrams, photographs, sections, plans, or letters from adjoining owners if appropriate. The reasons should be related to achieving the following objectives:
    - Is the development in accordance with the provisions of the Albury DCP 2010?
    - If not, why not?
    - What aspects of the development do not meet the DCP requirements?
    - To what degree does the proposal depart from the DCP?
    - How the objective is met if the requirement is to be varied?
    - Justify the departure in terms of the above circumstances.

    Some of the relevant factors Council will consider in determining whether a departure from the DCP is warranted include:
    - Whether there will be any detrimental impact on the amenity of the existing and future residents, as well as, its surrounds.
    - The nature and size of the departure.
    - The degree of compliance with other relevant requirements, and any compensatory measures taken to offset the departure.
    - The circumstances of the case, including whether the particular provision is unreasonable and/or unnecessary.
    - Priorities identified in a site analysis being of more importance than what is being departed from.
    - Whether non-compliance will prejudice the objectives of the zone and the aims of the DCP.

    Notation

    It is the responsibility of the applicant to evaluate the impact of a variation to a requirement or standard and to submit full evidence in writing to justify the proposed variation. This information is to be submitted with the Development Application.